2.3 Slavery and Trade

When people in power make decisions, the consequences are often immediate and long-lasting. That was the case during the Constitutional Convention when the Framers made decisions about slavery and trade.

MAIN IDEA Before the delegates approved the final draft of the Constitution, they had to compromise about slavery and settle issues about commerce.

SLAVERY AND REPRESENTATION

Even though the word *slavery* does not appear in the original body of the Constitution, slavery was a major topic at the Constitutional Convention. In fact, the delegates negotiated several compromises that firmly preserved the institution of slavery.

All delegates, whether from the North or the South, were especially concerned with how the practice of slavery affected state representation in Congress. Southern states depended more on enslaved labor than northern states. As a result, southern delegates wanted enslaved people to be counted as members of a state's population. Doing so would increase the number of delegates representing southern states in the House of Representatives. It would also increase the region's electoral votes. Northerners argued that enslaved people should not be counted because they were legally defined as property.

As part of the Great Compromise, the Convention delegates decided that five enslaved Americans would count as three free persons and approved inserting what is called the **Three-Fifths Compromise** into Article 1 of the Constitution. The Three-Fifths Compromise increased the power of white voters in the South at the expense of enslaved African Americans, who were each counted as less than a full person.

Article 1 also included a **slave importation clause** stating that Congress could not ban the importation of slaves for 20 years and that the tax on importing an enslaved person could not exceed $10 per person. Southern delegates also supported

Enslaved Population, 1790

Region	Total Population	Enslaved Population	Percentage of Population
New England	1,009,522	3,886	0.38%
Middle Atlantic	1,017,726	45,371	4.46%
South	1,866,387	645,023	34.56%
TOTAL	3,893,635	694,280	17.83%

Source: United States Census Bureau

the addition of the **fugitive slave clause** into Article 4 of the Constitution. This clause barred people who had escaped slavery in the South from living as free people in northern states.

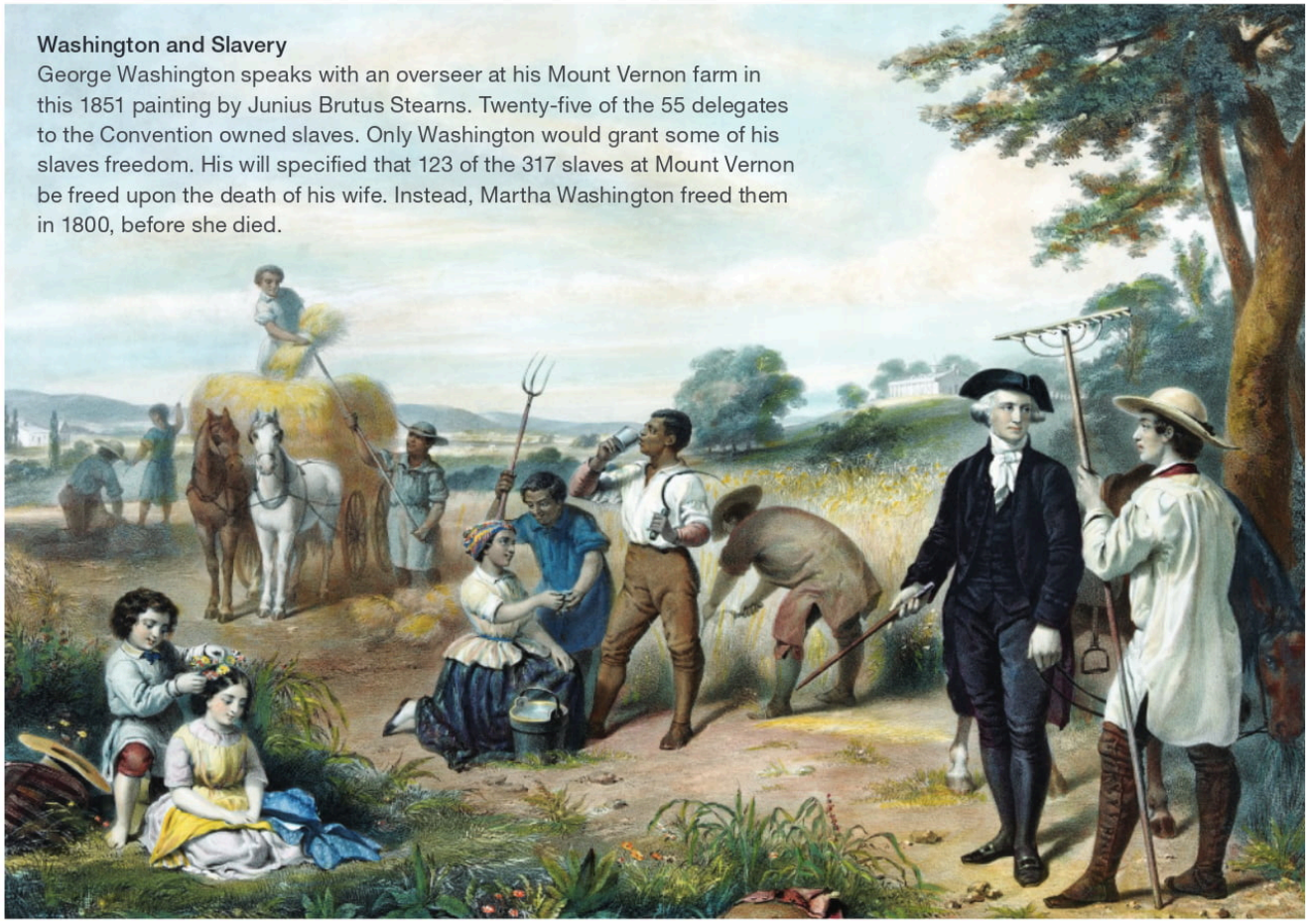
Some delegates, especially those from northern states, wondered if the nation's ideals of freedom, liberty, and democracy could coexist alongside slavery. Benjamin Franklin wanted to abolish slavery from Pennsylvania altogether, but other representatives from northern free states approved the provisions. Most did not oppose slavery.

FREE AND OPEN TRADE

The southern representatives' other concern was the government's taxation of exports. The South's strong agricultural economy depended on the export of goods to other countries. Southerners believed that requiring foreign buyers to pay taxes on exported goods would hurt this trade. A weakened agricultural trade, in turn, would hurt the southern economy. The delegates agreed.

The Constitution placed few limits on the nation's commerce. One exception was the **commerce clause**, which gave Congress the power "to

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Washington and Slavery
George Washington speaks with an overseer at his Mount Vernon farm in this 1851 painting by Junius Brutus Stearns. Twenty-five of the 55 delegates to the Convention owned slaves. Only Washington would grant some of his slaves freedom. His will specified that 123 of the 317 slaves at Mount Vernon be freed upon the death of his wife. Instead, Martha Washington freed them in 1800, before she died.

regulate commerce with foreign nations, and among the several states, and with the Indian tribes." Under the commerce clause, Native American tribes were considered sovereign governments and were not subject to the same regulations as states. The coinage clause required all states to use common coinage, or the same kind of money. Finally, according to the full-faith and credit clause, all states were required to respect the public acts, records, and judicial proceedings of all other states. Together, these three clauses gave Congress the authority to oversee interstate commerce and keep trade free and open among states. Delegates decided the country's economy would work under a **common market**, which meant that no tax could be charged on trade between states.

At last, the delegates had settled the most important issues for the new nation. Gouverneur Morris, a delegate from New York, perfected the wording of the proposed Constitution and organized it into seven articles, or main sections. On September 15, 1787, the delegates approved the final draft. They signed it two days later. As he observed the signing of the Constitution, Benjamin Franklin commented that the sun on George Washington's chair at the Convention must be a rising sun. The United States was at the beginning, and not the end, of its time.

Thirty-nine of the 55 Convention delegates, or more than two-thirds, signed the document. Some delegates who approved of the final draft did not sign it because they were not in attendance. After it was signed, the Constitution was sent to the states for ratification and became the subject of yet more debate.

HISTORICAL THINKING

1. **READING CHECK** How did the Constitution reflect specific concerns of southern states?
2. **ANALYZE DATA** Why did southern delegates want to insert clauses about slavery into the Constitution? Use evidence from the population chart and the text to support your answer.
3. **MAKE GENERALIZATIONS** What advantages did the states experience under the common market?

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